

INTA Practice Guides Report

Trademark Enforcement Guide

Austria

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- It is neither mandatory nor common to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting infringement proceedings in this jurisdiction.
- Before initiating an infringement proceeding, a party is required to take the following actions: none.
- The name for such a letter is: Aufforderungsschreiben or, in English, a cease and desist letter.
- Such a letter should be sent at the following time: before initiating legal proceedings.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark (this is the preferable option); an attorney for the licensee of the mark.
- There are no rules/customary practices applicable to such letters.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: results may be achieved more quickly and at lower cost; may lead to negotiations and avoid the need to commence proceedings.
- The potential consequences of sending such a letter include: destruction of evidence; loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by delay or acquiescence (i.e., if the potential infringer can prove that the owner has been aware of and has tolerated the infringing use for more than five years in Austria).

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is only one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark, which is: Commercial Court (State Court).

- The following factors determine which court or administrative body can hear a case: other: Only the Commercial Court in Vienna has jurisdiction in trademark matters.
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor need not join in the proceedings). A licensee may also institute trademark infringement proceedings with the consent of the registered proprietor of a mark. An exclusive licensee needs either the consent of the registered proprietor of a mark or may institute infringement proceedings himself even without consent, if the registered proprietor fails upon request of the exclusive licensee to institute infringement proceedings within a reasonable time limit.
- If there is more than one registered proprietor/owner, they must all join in instituting the proceedings.
- Trademark infringement proceedings are decided by a judge with no jury (a single judge).
- There is no time limit for initiating trademark infringement proceedings.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; preliminary motions (to dismiss, for preliminary injunction or temporary restraining order) (A motion for a preliminary injunction is a separate proceeding.); filing of briefs/written arguments; oral hearing; oral testimony/examination of witness; trial; judgment/decision.
- The average amount of time from the instituting of infringement proceedings through trial/final hearing is: between one and two years.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: between three and six months.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: unfair competition statute.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right; an exclusive licensee (The owner of the unregistered right must join in the proceedings.); a licensee with the consent of the owner of the unregistered right.
- If there is more than one owner of an unregistered trademark, they must all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief. However, they are rare: usually, the adverse party is heard.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time; however, it is necessary to institute infringement proceedings afterwards.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).

- There is no specified statutory or court-determined deadline for seeking an ex parte injunction.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: The delay will be considered as acquiescence after five years.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early disclosure of plaintiff's case; early adverse determination.
- An ex parte injunction remains in place: until a decision is made in the main proceedings.
- The defendant is notified of the grant of an ex parte injunction: by the court.
- The procedure for applying for an ex parte injunction includes the following: motion; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; supporting witness testimony; order; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction; the defendant's costs in defending the injunction application.
- The factors considered in the granting of an ex parte injunction are: inadequacy of damages as a remedy; balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; likelihood of success on the merits; urgency.
- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements; oral testimony of witnesses; documents; affidavits; samples of infringing product.
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: less than USD 10,000.
- The costs of an ex parte injunction are recoverable as follows: one-third to one-half of the costs are recoverable.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between 10 and 30 days.
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order").
- The following party or parties will be present at the inspection: the marshal, sheriff or other law enforcement officer; the party who obtained the order; the party against whom the order is granted; the party's/parties' legal representative(s).
- In an ex parte proceeding, a party may not request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The grant of an ex parte injunction can be appealed.

- Appeal of a decision granting an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- In order to apply for an interim inter partes injunction, it is not necessary to institute infringement proceedings at the same time; however, it is necessary to institute infringement proceedings afterwards.
- The types of interim inter partes injunction available include:prohibitory (to prohibit the defendant from performing certain acts);mandatory (to require the defendant to perform certain acts).
- There is no specified deadline for seeking an interim inter partes injunction.
- A delay in applying for an interim inter partes injunction cannot prevent the applicant from obtaining the desired relief.
- The purpose of an interim inter partes injunction is:to restrain further infringing activities until trial or a further hearing;to prevent the consequences of an infringement or violation;to obtain or preserve evidence;to prevent irreparable injury.
- The strategic benefits of obtaining an interim inter partes injunction include:it may put an end to the infringement and litigation quickly;it may save costs;putting the defendant at a strategic disadvantage at the beginning of the case;obtaining or preserving evidence;getting an assessment of the merits by the court;reducing potential damage caused by infringement.
- The risks of seeking an interim inter partes injunction (if it is not granted) are:potential for a damages claim under the bond or cross-undertaking.
- An interim inter partes injunction remains in place: until a decision is made in the main proceedings.
- The procedure for applying for an interim inter partes injunction includes the following:motion, without notice to all parties;supporting memorandum/points and authorities of law;supporting affidavits or declarations;supporting documentary evidence;responsive memorandum/points and authorities of law (if requested by the court);responsive affidavits or declarations (if requested by the court);order;posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on:the potential damage/losses to the defendant caused by an improvidently entered injunction;the defendant's costs in defending the injunction application.
- The factors considered in the granting of an interim inter partes injunction are:inadequacy of damages as a remedy;balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction;likelihood of success on the merits.
- The following forms of evidence are admissible in support of an interim inter partes injunction application:written witness statements;oral testimony of witnesses;documents;affidavits;samples of infringing product.
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to:compensate the defendant for damages suffered from the injunction.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately:less than USD 10,000.
- The costs of an inter partes injunction are recoverable as follows: One-third to one-half of the costs are recoverable.
- It takes approximately the following length of time to obtain an interim inter partes

injunction (counting from filing of the application to issuance of the injunction):between 10 and 30 days.

- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”).
- The following party or parties will be present at the inspection: the judge(s) (possibly); the marshal, sheriff or other law enforcement officer; the party who obtained the order; the party against whom the order is granted; the party's/parties' legal representative(s).
- In an interim inter partes proceeding, a party may not request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The determination on an application for an interim inter partes injunction cannot be made into a final decision on the merits (i.e., an interim inter partes injunction cannot be made permanent).
- The hearing on an interim inter partes injunction can be consolidated with the trial or final determination on the proceeding.
- The grant of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the grant of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision granting an interim inter partes injunction cannot be expedited.
- The denial of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision denying an interim inter partes injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction is the same as the standard for obtaining an ex parte injunction.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party cannot end proceedings prior to trial or final determination by any interim applications (such as summary judgment or determination of preliminary issue by trial or hearing).

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings cannot be expedited through an early trial or hearing on a preliminary issue.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings:documentary evidence (including samples/photos of allegedly infringing items);expert evidence;oral testimony;survey evidence.

- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence; oral testimony; survey evidence.
- A claimant must present or give notice of any evidence on which it will rely at the commencement of the proceedings.
- A defendant must present or give notice of any evidence on which it will rely at the time of the initial response to the claim or at a time set by the tribunal.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: oral testimony of witnesses; documents; surveys; physical objects; expert testimony.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution; genericness.
- The use of survey evidence is subject to the following requirements: none.
- The length of an average trial or final hearing in a civil action for trademark infringement is: one to two hours.
- The nature of the proceedings is: adversarial, i.e., the proceedings are driven by the parties and their representatives (e.g., the litigants control and present evidence) and the decision maker plays a relatively passive role.
- A trial or final hearing includes the following: opening statements by counsel for each party; plaintiff's case through examination of witnesses by plaintiff; defendant's case through examination of witnesses by defendant; plaintiff's case through examination of witnesses by judge; defendant's case through examination of witnesses by judge; cross-examination of witnesses by parties is permitted; closing argument by counsel for each party.
- Witnesses are examined by: the judge; the lawyers; court experts.
- As part of trial preparation, the parties do the following: provide draft findings and conclusions if the proceeding is to be decided by a judge; provide stipulations of fact; identify trial witnesses; consider possibility for settlement.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: three months.
- The decision may be appealed within the following time frame: four weeks.
- Appealing a decision is of right; no permission is needed.
- There is only one court to which an initial appeal can be made, which is: the Court of Appeal in Vienna.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: the Supreme Court.
- Further appeal is not granted as a matter of right; permission is required.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: In general, the defendant must comply with an order issued in interim injunction proceedings on the next day and in main proceedings as soon as the judgment is enforceable.
- A judgment may be enforced by way of the following proceeding(s): enforcement

proceedings.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; witness fees (for third-party witnesses); costs incurred by a party or its witnesses (for travel, food, lodging or other expenses).
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: less than USD 20,000.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: 50 percent.
- Attorney fees are assessed using the following method(s): a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff is not required to provide security for any costs that may eventually be awarded against it; however, if the plaintiff is from a foreign country with no reciprocity, it may be required upon request of the defendant.
- A defendant is not required to provide security for costs after proceedings are initiated.
- For the court to grant security for costs, the following conditions must be met:
- In granting security for costs, the court may make the following orders: the amount of the security; the manner in which the security must be given; the time frame in which the security must be given;
- An order for security for costs may be appealed under the following circumstances: in any case
- If security is ordered, it is customarily provided in the form of: bond/payment to the court; third-party guarantee;

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: accounting of defendant's profits and actual damages (double the amount in cases of gross negligence or willful intent by the defendant).
- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff; constructive license fee/reasonable royalty; defendant's profits.
- Where both are available, a party can choose whether to receive damages or an accounting of profits.
- Determination of the type and amount of remedy is part of the trial on liability.
- The following non-monetary remedies are available for trademark infringement: injunctions; destruction; public dissemination of judgment (i.e., publication of judgment); recall of infringing products; identification of supplier.

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